

Requesting Department:

Human Resources

Submitted By:

Jennifer Orme

Meeting Date:

June 3, 2020

Agenda Item:

Approval of Collective Bargaining Agreement/Settlement Agreement between the City and the Holland Professional Firefighters Union - Adopt Resolution

Agenda Item #:

12E6.4

Meeting Type:

City Council - Regular

Attachments:

Settlement Agreement; Resolution

Suggested Caption / Motion / Recommendation:

It is recommend that City Council authorize the Mayor and City Clerk to sign the new three-year labor agreement with the Firefighters Union, once revised by the Labor Attorney. This contract will be based on the attached settlement agreement which would be executed upon Council approval.

Summary of Request:

The current Firefighters contract will expire on June 30, 2020. Since early 2020, the City and Union have been in negotiations. We are pleased that a new tentative agreement was reached with the IAFF Bargaining Team prior to the current contract expiration. The Union ratified the settlement agreement at a meeting held on Tuesday, June 2, 2020. See the attached documents for details.

Financial Information:

Total Cost:

0

General Fund Cost:

0

Included in Budget: ☐ Yes ☐ No ☒ N/A

If not included in budget, recommended funding source:

Action is related to the Strategic Plan and Business Plan:

Goal:

4: To provide quality services to all stakeholders

Objective:

4.6: Management and Administrative Services - Provide effective leadership and support for citizens and operations

City Manager:

☒ **Recommended**☐ **Not Recommended**☐ **Without Recommendation**

Board / Commission / Committee Approval Date:

CITY OF HOLLAND -and- HPFFU, IAFF LOCAL 759

CBA Settlement Agreement 2020-2023

This CBA Settlement Agreement is made by and between the City of Holland (“Employer”) and the Holland Professional Firefighters Union, IAFF Local 759 (“Union”) as follows:

1. The provisions of the expired collective bargaining agreement (“CBA”) between the Employer and the Union shall be incorporated herein except to the extent that they are modified by the terms of this CBA Settlement Agreement.

2. Nothing in this CBA Settlement Agreement shall be retroactive unless specifically stated herein.

3. This CBA Settlement Agreement is tentative and subject to ratification by the bargaining unit and the Employer’s City Council.

4. Section 14.3 (Use of Sick Leave) – Add a new subsection (n) reading as follows:

When FMLA leave is used for absences related to the injury, illness or required medical care related to an employee’s spouse and newborn child, specifically following the birth of a child, the employee may use up to 24 hours of sick leave.

5. Section 17.1(b) (Holidays) – Modify this subsection to read as follows:

The following days will be considered holidays:

New Year’s Day	Thanksgiving
Memorial Day	Day after Thanksgiving
Fourth of July	Christmas Eve
Labor Day	Christmas Day

6. Section 19.2 (Compensatory Time) – Modify this section by inserting the following sentence immediately before the current last sentence:

The Employer may choose to cash out an employee’s accrued compensatory time at any time during employment.

7. Section 24.4 (Food Allowance) – Modify the second sentence to read as follows:

Effective July 1, 2020, a food allowance of \$850 will be paid to all full-time shift firefighters covered under this Agreement. Effective each subsequent July 1 during the term of this Agreement, the food allowance shall be increased by \$25.

8. Section 24.6 (Wage Issues) – Modify this section by replacing the current indented paragraphs with the following:

Effective July 1, 2020 – Wages shall be increased by the same percentage applied to General City non-union employees or 2.75%, whichever is greater.

Effective July 1, 2021 – Wages shall be increased by the same percentage applied to General City non-union employees or 2.75%, whichever is greater.

Effective July 1, 2022 – Wages shall be increased by the same percentage applied to General City non-union employees or 2.25%, whichever is greater.

9. Section 25.1(b)(10) (Tuition Reimbursement Program) – Modify this subsection by changing “\$2,500” to “\$5,000”.

10. Section 29.1 (Duration) – Modify this section by changing “2016” to “2020” and “2020” to “2023” and make any other changes to the CBA necessary to reflect the new term.

11. Section 14.6 (Bereavement Leave) – Modify this section to read as follows:

In the event of a family death, bereavement leave will be issued as follows:

In the case of the death of a current spouse or dependent child: three (3) duty days of leave for “Group G – 24 Hour Shift” employees or 40 hours of leave for “Group H – 40 Hours/Week” employees.

In the case of the death of a non-dependent child, parent, step-parent, brother, sister, step-brother, step-sister, parent-in-law, son-in-law, or daughter-in-law: two (2) duty days of leave for “Group G – 24 Hour Shift” employees or 24 hours of leave for “Group H – 40 Hours/Week” employees.

In the case of the death of a brother or sister-in-law, grandparent, grandchild or other relative who resides in the same household as the employee: one (1) duty day of leave for “Group G – 24 Hour Shift” employees or 8 hours of leave for “Group H – 40 Hours/Week” employees.

In the case of the death of a relative other than those specified above, or in the case of the death of a fellow employee or former employee: time to attend the funeral will be granted, not to exceed one (1) duty day for “Group G – 24 Hour Shift” employees or 8 hours for “Group H – 40 Hours/Week” employees, provided that it does not unduly impact the ability to sustain normal business.

Bereavement leave for “Group G – 24 Hour Shift” employees may only be taken beginning with the day of the death through the day following the funeral.

All time provided above will be charged to bereavement leave as such and must be clearly shown on the employee’s time card.

Should additional time be needed other than the bereavement leave above, with the approval of the Chief of Public Safety, accumulated benefit time an employee has can be used. In addition, an unpaid leave may be requested by the employee (from a supervisor for "Group G – 24 Hour Shift" employees) and must be approved by the Captain of Fire Services. Both paid and unpaid time off is to be clearly documented on the employee's time card.

CITY OF HOLLAND

By: _____
Its: _____

Date: _____

HOLLAND PROFESSIONAL FIREFIGHTERS UNION,
IAFF LOCAL 759

By: 
Its: President

Date: 6-3-20

CITY OF HOLLAND ADOPTING THE COLLECTIVE BARGAINING AGREEMENT WITH THE PROFESSIONAL FIREFIGHTERS UNION, IAFF LOCAL 759

At a regular meeting of the City Council for the City of Holland, Michigan, held at City Hall, 270 River Avenue, Holland, Michigan 49423, on the 3rd day of June, 2020 at 6:30 p.m.

PRESENT: _____

ABSENT: _____

The following Resolution was offered by _____
and supported by _____.

RESOLUTION

WHEREAS, the current Collective Bargaining Agreement between the City of Holland and the Holland Professional Firefighters Union, IAFF Local 759 will expire on June 30, 2020; and,

WHEREAS, representatives of the IAFF and the City of Holland met in good faith and negotiated a new Collective Bargaining Agreement; and,

WHEREAS, the new Collective Bargaining Agreement includes the following issues: the addition of a subsection to the Use of Sick Leave procedure to allow for up to 24 hours of sick leave to care for a spouse or child (specifically following the birth of a child and while covered under FMLA), adding Christmas Eve to the covered holidays, modifying the Compensatory Time section, an increase to the full time shift firefighter's Food Allowance (\$25/year), increased wages over the length of the Agreement (2.75%, 2.75%, 2.25%), increasing the Tuition Reimbursement benefit, changing the duration of the contract from four (4) years to three (3) years, modifying the Bereavement Leave section; and,

WHEREAS, the new Collective Bargaining Agreement between the Holland Professional Firefighters Union, IAFF Local 759 and the City of Holland shall be effective July 1, 2020 through June 30, 2023, and a copy of the CBA Settlement Agreement is attached, which includes all changes to the current contract.

NOW, THEREFORE, BE IT RESOLVED, that the new Collective Bargaining Agreement between the City of Holland and the Professional Firefighters Union, IAFF Local 759 is hereby adopted and the Mayor and Clerk are authorized to sign the new Collective Bargaining Agreement on behalf of the City, subject to approval by the City Attorney.

Resolution Declared Adopted.

Dated: June 3, 2020

Kathy Grimm, City Clerk
City of Holland

STATE OF MICHIGAN)

) SS.

COUNTY OF OTTAWA)

I, the undersigned, the duly qualified City Clerk of the City of Holland, Ottawa County, Michigan certify that the foregoing is a true and complete copy of a resolution Adopting the Collective Bargaining Agreement adopted by the City Council at a regular meeting held on June 3, 2020, the original of which is on file in my office. Public notice of said meeting was given pursuant to and in compliance with 1976 PA 267, as amended, and was held in compliance with 1976 PA 267.

IN WITNESS WHEREOF, I have hereto affixed my official signature this 3rd day of June, 2020.

Kathy Grimm, City Clerk
City of Holland